Amaan vs The State Nct Of Delhi on 18 August, 2025

Author: Swarana Kanta Sharma

Bench: Swarana Kanta Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2293/2025
AMAAN
Through: Mr
Ra

versus

THE STATE NCT OF DELHI
Through: Mr

CORAM:
HON'BLE DR. JUSTICE SWARANA KANTA SHARMA
ORDER

% 18.08.2025

1. By way of the present application, the applicant seeks grant of regular bail in case arising out of FIR bearing No.0115/2025, registered at Police Station Seemapuri/Cyber Shahdara, Delhi for the commission of offences punishable under Sections 319/336(3)/336(4)/340(2)/61(2)(a)/62 of the Bhartiya Nyaya Sanhita, 2023 (hereafter 'BNS').

2. The present FIR was registered on the basis of a complaint received on 21.01.2025 from the Branch Manager, Bank of Baorda, Dilshad Garden, Seemapuri, Delhi. The investigation revealed that the present accused Amaan and co-accused Faizan had been apprehended by the Branch Manager, Bank of Baroda for opening bank accounts on the residential address of one Sh. Nisar Khan. During investigation, from their search, seven Debit Cards of different banks were recovered from the possession of accused Faizan and four Debit Cards of Sharukh Khan were recovered from This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 19/08/2025 at 22:38:31 the possession of the present accused Amaan. Further, investigation revealed that 21 bank accounts had been opened in the name of the present accused in different banks in India which contained huge amount of money. On further investigation, it was found that the bank accounts of accused Amaan were found tagged in multiple complaints across the country. The present accused used to open multiple bank accounts on the address of D-16, Gali No.4, Janta Majdoor Colony, Seelampur, Maujpur, Delhi which is a fictitious address and is not traceable. During further investigation, it was found that at the instance of the present accused, the co-accused had opened 15 bank accounts in

which the co-accused, the mobile number of accused Amaan is mentioned. Further investigation revealed that accused Amaan had used a forged electricity bill to open bank account in Central Bank of India which has found to be fake through BSES Yamuna Power Ltd. Officials.

3. The learned counsel appearing for the petitioner argued that the co- accused has been granted bail, chargesheet has been filed and therefore, on the ground of parity and the accused not being required for custodial interrogation, is entitled to be released on bail.

4. The learned APP for the State, on the other hand, argues that the allegations against the accused are very serious in nature. He is the mastermind behind the syndicate run for committing cyber frauds. It is also argued that the accused had opened multiple bank accounts which are linked to his phone number and further the bank accounts opened at his asking by the co-accused are also linked to his phone number. Further, he submits that multiple complaints have been received from all across India wherein the phone number of the accused and his account number have been tagged, therefore, the application be rejected.

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5. This Court has heard arguments addressed on behalf of both the parties and has perused the material available on record.

6. After hearing arguments and going through the case file, this Court is of the opinion that as per investigation, the accused is working in a jeans factory as a worker and has no source of income, however, he has opened 21 bank accounts which contained huge amount of money. The investigation also revealed that four Debit Cards of Sharukh Khan were recovered from the present accused. The Court takes note of the fact that the bank account of accused Amaan has been found tagged in multiple complaints of cyber frauds across the country, on cyber crime portal. Further he has also opened multiple accounts on a fake address using fake documents. Even the bank accounts which have been opened by the co-accused persons have been linked to the mobile number of the present accused. Multiple phone numbers have been found registered in the name of the present accused, as per details provided by the Airtel and Jio in Customer Application Form. Chargesheet in this case has been filed. The victims are yet to be examined. The evidence collected so far, prima facie reveals that the accused has indulged in serious offences of cyber frauds. The role of the present accused is distinguishable from the role of the co-accused, who has been granted bail as the allegations against the present accused are more serious, being found to be mastermind of the entire syndicate which was engaged in opening fake bank account on the basis of fake documents. The Court cannot loose sight of the fact that the cyber crimes are on the rise and in the present case, 21 bank accounts have been opened in the name of the present accused/applicant. It also cannot be ignored that 30 bank accounts in which mobile number of the accused has been found to be registered as primary phone number were found to be used This is a digitally signed order.

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7. Considering the overall facts and circumstances of the case, this Court does not find it a fit case for grant of bail, at this stage.

8. Accordingly, the present bail application stands dismissed.

9. It is, however, clarified that nothing expressed herein above shall tantamount to an expression of opinion on merits of the case.

10. The order be uploaded on the website forthwith.

DR. SWARANA KANTA SHARMA, J AUGUST 18, 2025/A/ns This is a digitally signed order.

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